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Court

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Date

1992-04-30

Appeal No.

CRIMINAL APPEAL NO. 78(S) OF 1992.

Judge

MR. JUSTICE KHALIL-UR-REHMAN KHAN MR. JUSTICE MUNIR A. SHEIKH MR. JUSTICE WAJIHUDDIN AHMED MR. JUSTICE

Parties

MIAN AFTAB SAIGAL (APPELLANT) VERSUS 1. THE STATE2. MIAN NASEEM SAIGAL (RESPONDENTS)

Lawyers

MUHAMMAD MUNIR PERACHA, ASC WITH CH. AKHTAR ALI, AOR, RAJA MUHAMMAD ANWAR, SR. ASC AND RAJA ABDUL GHAFOOR, AOR FOR APPELLANT IN CR.A.NO. 78(S)/92 IN CR.A.NO. 79(S)/92.GHULARN AHMAD, ASC FOR STATE/RESPONDENT NO. 1 (IN BOTH CASES).ABUT HASSAN MINTO, ASC AND SH. MASUD AKHTAR, AOR (ABSENT) FOR RESPONDENT NO. 2 IN CR.A. NO. 79(S)/92.

Statutes

PROHIBITION (ENFORCEMENT OF HADD) ORDER (P.O. 4 OF 1979) - ARTICLE 27(1) IBID - ARTICLE 11 IBID - ARTICLES 3, 4, 27 CRIMINAL PROCEDURE CODE (V OF 1898) - SS. 249A, 265K ACQUITTALS CRIMINAL PROCEDURE CODE (V OF 1898) - S. 342

Judgment

KHALIL-UR-REHMAN KHAN, J.-This judgment will dispose of two appeals [Criminal Appeals Nos. 78(S) of 1992 and 79(S) of 1992] as the main question of law involved, amongst others, is common in both these appeals.

Criminal Appeal No. 78(S) of 1992: -

Briefly stated the facts are that on 12.3.1989 Saeed Khan, DSP, Kasur, received spy information that two pathans heroin smugglers had come in Kasur in the house of the appellant Muhammad Sharif to dispose of huge quantity of heroin. A raiding party was arranged and on search of house of Muhammad Sharif appellant, huge quantity of heroin and arms was recovered. Hayatullah and Arfat, two other persons were present there. All the three namely, Muhammad Sharif, Hayatullah and Arfat, with contraband material, Were arrested. Inventory in respect of the same was prepared and the samples drawn from the contraband material were sent to the Chemical Examiner whose report is in the positive. After usual investigation, Muhammad Sharif appellant along-with his co-accused Hayatullah and Arfat was challaned before the Court to face the trial where they did not plead guilty and claimed trial. The prosecution in support of its case examined Muhammad Anwar Constable PW-1, Allah Din Constable PW-2, Ahmad Din PW-3, Bashir Ahmad Bhatti PW-4 and Muhammad Munir PW-5. At this stage an application under section 249-A, Cr.P.C. was moved before the Magistrate seeking acquittal on the plea that the prosecution has failed to make out any case against the accused. This application was accepted by the learned Magistrate, and the appellant Muhammad Sharif and his co-accused were acquitted observing that Saeed Khan DSP, the only remaining witness, even if produced, would not establish the guilt of the accused. The order of acquittal was then challenged by filing an appeal before the learned Federal Shariat Court which was accepted vide impugned judgment dated 27.4.1992. The acquittal was set aside and the case was remanded to the learned Sessions Judge, Kasur for recording evidence of DSP Saeed Khan or any other witness who may be produced by the prosecution and the defence. It may be noted that Hayatullah and Arfat coaccused of the appellant Muhammad Sharif absconded and had not entered appearance before the learned Federal Shariat Court despite publication of a proclamation in the press/newspapers. Muhammad Sharif appellant then alone filed a Petition for leave to appeal and leave was granted to him vide order dated 20.10.1992 to consider the question whether an appeal under section 417, Cr.P.C. against acquittal under the Prohibition (Enforcement of Hadd) Order, 1979 (hereinafter referred to as the Prohibition Order) lies to the Federal Shariat Court.

Criminal Appeal No. 79(S) of 1992:-

The facts of the appeal, briefly stated, are that on 8.6.1990 a case under Article 11 of the Prohibition Order was registered against Mian Aftab Saigal with the allegations that on 8.6.1990, while the Inspector/SHO Police Station

Gulberg was present in the Main Market Gulberg with his staff on petrol duty, he saw Mian Aftab Saigal, appellant near the Punjab Tikka Shop making Ghul Ghopara. On checking, smell of Alchoal was suspected to be coming out from his mouth. He was, therefore, taken by the Police to the Police dispensary for the medical check up where the doctor examined him and issued the Medico-Legal Report containing the opinion of suspected intoxication. After usual investigation, challan was submitted before the Court of Magistrate who on

8.9.1990 framed formal charge under Article 11 of the Prohibition Order against him to which he did not plead guilty. The prosecution produced Dr. Saqib Naeem PW-1 who proved the Medico-

Legal Report. He was cross-examined in detail and in view of some of the affirmative replies given by him in cross-examination, an application under section 249-A, Cr.P.C. was moved by the appellant seeking his acquittal. This application, after hearing the arguments of the prosecution as well as the defence, was accepted by the learned Magistrate and the appellant was acquitted vide order dated 23.9.1990. An appeal (Criminal Appeal No. 423/L of 1990) against acquittal was filed by the State before the Federal Shariat Court on 21.11.1990. Another appeal (Criminal Appeal No. 383 of 1991) was filed by the State against this very order of acquittal before the Lahore High Court, Lahore on 20.3.1991. It may be added that the appeal before the Federal Shariat Court was filed by Mr. Muhammad Farooq Bedar showing himself as a Public Prosecutor, statedly under specific direction of the Governor of the Punjab. The appeal filed before the Lahore High Court was, however, withdrawn on 14.5.1991 on the ground that jurisdiction vests with the Federal Shariat Court and an appeal bearing No. 423/L of 1990 on the same subject has already been filed which has since been admitted. The appeal was thus disposed of as having been withdrawn. The appeal filed before the learned Shariat Court was heard alongwith Criminal Revision No. 2/L of 1992, filed by Mian Naseem Saigal and Mian Azam Saigal (the two brothers of the appellant on whose instance the case was statedly registered against the appellant), by a Bench of two learned Judges of the Federal Shariat Court and vide judgment dated 30.4.1992 the appeal of the State was accepted, order of acquittal was set aside and the case was sent for retrial to the learned Sessions Judge, Lahore in accordance with law, while the revision filed by Mian Naseem Saigal and Mian Azam Saigal, the two brothers of the appellant Mian Aftab Saigal, was dismissed in limine treating the same to have been rendered infructuous as the judgment of acquittal was set aside in appeal. Mian Aftab Saigal then assailed the judgment of the Federal Shariat Court by filing a Petition for leave to appeal which was granted vide order dated 22.10.1992 noting down, inter alia, the contention "that the acquittal appeal filed by Mr. Muhammad Farooq Bedar who was not a Special Public Prosecutor to file the appeal and that the appeal before the Federal Shariat

Court against the acquittal of an accused was not competent,." In support of this plea reliance was placed on State v. Muhammad Tariq (PLD 1982 FSC 169).

Both the appeals came up for hearing on 25.3.1998 and the following questions were noted:-

(1) Whether Mr. Muhammad Farooq Bedar, Assistant Advocate General, who filed the appeal before the Federal Shariat Court had the necessary legal authority to file the same in term of Section 492, Cr.P.C.?

The question is whether he was appointed as Public Prosecutor or not for the purpose of these appeals and if not whether in the capacity of Assistant Advocate General/Additional Advocate General, the appeal could be competently filed in a Hudood case.

(2) Whether an appeal against order of acquittal in Hudood case lies before the High Court or before the Federal Shariat Court under section 417 Cr.P.C.? or any other provision of law?

(3) Revision under Article 203-DD of the Constitution lies to the Federal Shariat Court. If the appeal lies before the High Court, whether the revision under the aforesaid Article would still be competent before the Federal Shariat Court. The question is to reconcile the two jurisdictions vesting in two Courts.

(4) Whether the orders setting aside the acquittal without examining the merits, are legal and proper, in the facts and circumstances of both the cases? (This question has been re-framed by us as in the question framed it was through mistake that the order passed was stated as order of conviction whereas in fact it is order setting aside acquittal.)

Raja Muhammad Anwar, Senior Advocate learned counsel for the appellant in Criminal Appeal No. 79(S) of 1992 contended that appeal against order of acquittal is competent before the High Court under Article 27(1) of the Prohibition Order and not before the Federal Shariat Court as second proviso to this very Article provides that an appeal from an order under Article 8 or from an order under any other provision of the Prohibition Order which imposes a sentence of imprisonment for a term exceeding two years shall lie to the Federal Shariat Court.

According to him, against all other orders e.g. the order of acquittal or the order imposing punishment of two years or less than , two years, the forum of appeal is to be found from the provisions of Criminal Procedure Code which provisions, under sub-article (1) of Article 27 of the Prohibition Order, have been made to apply mutatis mutandis. He pointed out that this very view has been taken by the learned Federal Shariat Court itself in

The State v. Muhammad Tariq (PLD 1982 FSC 169) as well as by the Lahore High Court in State v. Abdul Majid (NLR 1982 Criminal 212), Peshawar High Court in The State v. Muhammad Yaqoob (1997 P.Cr.L.J. 528) and High Court of Sindh in The State through Advocate- General Sindh and Public Prosecutor v. Shahbaz Khan (1998 P.Cr.L.J. 1229).

Next it was contended that the State had filed an appeal in the High Court against the order of acquittal and the withdrawal of the State appeal and having it disposed of as withdrawn vide order dated 14.5.1991 has rendered the order of acquittal final and as such the Federal Shariat Court could neither entertain the appeal nor interfere in the order of acquittal so attaining finality, by invoking the revisional jurisdiction otherwise vesting in it under Article 203-DD of the Constitution as the said jurisdiction is available only to scrutinize the orders passed by the "Criminal Court" and not the order of the High Court which admittedly does not fall within the connotation of the term "Criminal Court".

Learned counsel further contended that Mr. Muhammad Farooq Bedar filed the appeal describing himself as a Public Prosecutor statedly under some direction of the Governor without placing on record either copy of said direction of the Governor or a copy of any notification whereby he had been appointed as a Public Prosecutor. In support of this plea, reliance was placed on Kadir Bux and others v. The Crown (PLD 1955 Federal Court 79), wherein Advocate General who was not a Public Prosecutor within the meaning of Section 492, Cr.P.C. was held not competent to file appeal against acquittal; and State through Advocate General, Sindh v. Hanif Ahmed and others (1994 SCMR 749) wherein appeal filed by an Assistant Advocate General was held to have been filed by an incompetent person.

Learned counsel further contended that order of acquittal is not interfered with even if a different view can possibly be taken from the facts established on record. He in support of this contention referred to Ghulam Sikandar and another v. Mamaraz Khan and others (PLD 1985 SC 11), Sikandar Hayat v. Muhammad Nawaz and 3 others (1995 SCMR 616), Imran Hussain v. Amar Arshad and 2 others (1997 SCMR 438) and Haji Rab Nawaz v. Sikandar Zulqamain and 7 others (1998 SCMR 25), wherein principles for interference in order of acquittal have been settled.

Learned counsel with regard to the observations of the learned Judge to the effect that the Court cannot close the mouth of the prosecution and assess evidence of witnesses without recording their evidence referred to the words "at any stage" appearing in section 249-A, Cr.P.C. and pointed out that it is of the case is indicative enough of the intention that any such stage could be the very initial stage, after taking cognizance or it could be a middle stage after recording some proceedings and/or even, it could be later stage as well. Reliance was placed on State through Secretary Ministry of Interior v. Ashiq Ali Bhutto (1993 SCMR 523). Learned counsel also took us

through the statement of the doctor and the material on record to show that even on merits remand of the case for recording of the statement of the remaining witnesses was not legally called for as> that would not have made any difference as no conviction could possibly be obtained by prosecution.

Mr. Muhammad Munir Peracha, Advocate, learned counsel for the appellant in Criminal Appeal No. 78(S) of 1992, adopted the arguments of Raja Muhammad Anwar, learned counsel for the appellant in Criminal Appeal No. 79(S) of 1992. Even on merits of his case he argued that the recording of the evidence of DSP Saeed Khan, the only remaining witness, would not have been of any benefit to the prosecution as he could not have possibly fulfilled the lacunas, the discrepancies and the contradictions already existing and apparent from the record.

Mr. Abid Hassan Minto, Advocate, learned counsel for respondent No. 2 in Criminal Appeal No. 79 (S) of 1992, in reply argued that the Trial Court in propriety should have itself directed the prosecution to produce the report of the Chemical Examiner as the same was very important pice of evidence to establish the prosecution case and remand of the case even for that purpose was well-justified. He added that the Medico- Legal Report pertaining to examination of the accused/appellant, which was proved by the doctor in his evidence, itself contains an entry that patient gives history that opposite party has forcefully given him Alcohol. According to the learned counsel, the doctor's evidence on record has to be appraised alongwith the entries of the Medico-Legal Report and the Federal Shariat Court was justified in remanding the case for recording the testimony of the remaining four witnesses, three of whom are police witnesses and one is the public witness.

As regards competence of the appeal filed under signatures of Mr. Muhartimad Farooq Bedar, Mr. Abid Hassan Minto, contended that he was Additional Advocate General at the time and as "Additional Advocate General" is included in the definition of the term "Advocate General", the appeal filed by him was competent and maintainable even in accordance with the observations made in the case of Hanif Ahmad {supra}.

The challenge made to the competency of the appeal filed by Mr. Farooq Bedar describing himself as Public Prosecutor by pressing into service the aforesaid precedents, cannot succeed as neither the notification of appointment of Mr. Farooq Bedar as Assistant Advocate General or Additional Advocate General, Punjab nor the notification of appointment of Public Prosecutor in terms of Section 492, Cr.P.C. was produced on record. This very objection was not taken before the Federal Shariat Court.

We, in the circumstances, deem it appropriate not to go into this question as the necessary foundational facts have not been established.

Mr. Minto, on the question of interpretation of Article 27 of the Prohibition Order contended that complications and irreconcilable conflict would arise if it is held that appeal against the order of acquittal lies to the High Court as in a case of joint trial where one accused is acquitted while the other accused is convicted and is awarded the imprisonment of more than two years, appeal of the acquitted accused would lie to the High Court while the appeal of the convict would lie to the Federal Shariat Court, and this would entail possibility of passing of conflicting decisions. He pointed out that in that situation revisional jurisdiction of either of the Courts would not be exercisable as under Article 203-DD of the Constitution, Federal Shariat Court . can examine the legality/property of the orders passed by a "Criminal Court" which a High Court is not. Similarly, the High Court cannot sit in judgment of the orders passed by the Federal Shariat Court as it is not a Court subordinate to the High Court. According to Mr. Minto, second proviso added to Article 27 in the Prohibition Order in the year 1980 by President's Order 5 of 1980 and its further

amendment in 1982 by President's Order 6 of 1982 has not made the position clear as to appeal against order of acquittal.

He pointed out that the draftsman should have been well-advised to follow the phraseology of section 20 of the Offence of Zina (Enforcement of Hudood) Ordinance, 1979.

He further contended that withdrawal of appeal filed before the High Court and its dismissal as withdrawn is of no consequence as firstly the appeal before the High Court was not competent; secondly the disposal of appeal by the High Court was not on merits; and thirdly before withdrawing the said appeal from the High Court, appeal before the Federal Shariat Court had already been filed and was competently pending and that the appeal filed before the High Court was withdrawn on that very account and basis. The plea that order of acquittal had attained finality because of withdrawal of appeal from Lahore High Court is without merit for the reason that the order of withdrawal was not an order passed on merits and also on account of the finding that we propose to record on the question of maintainability of appeal before the Federal Shariat Court.

Now we take up the main question, that is, of interpretation of Article 27 4 of the Prohibition Order. To this Article second proviso was added vide

Presidential Order No. 5 of 1980 and Presidential Order No. 6 of 1982 then f1 further amended the second proviso. Article 27 of the Prohibition Order as it presently stands reads as under:-

"27. Application of the Code of Criminal Procedure (Act V of 1898). (1) Unless otherwise expressly provided in this Order, the provisions of the Code of Criminal Procedure, 1898 (Act V of 1898), hereinafter referred to as the said Code, shall apply mutatis mutandis in respect of cases under this Order:

Provided that, if it appears in evidence that the offender has committed a different offence under any other law, he may, if the Court is competent to try that offence and to award punishment therefor, be convicted and punished for that offence:

Provided further that an offence punishable under Article 8 shall be triable by a Court of Session and not by a Magistrate authorised under section 30 of the said Code and an appeal from an order under that Article or from an order under any other provision of this Order which imposes a sentence of imprisonment for a term exceeding two years shall lie to the Federal Shariat Court:

Provided further that a trial by a Court of Sessions under this Order shall ordinarily be held at the headquarter of the Tehsil in which the offence is alleged to have been committed.

(2) The provisions of the said Code relating to the confirmation of the sentence of death shall apply, mutatis mutandis to the confirmation of a sentence under this Order.

(3) The provisions of sub-section (3) of Section 391 or Section 393 of the said Code shall apply in respect of the punishment of whipping awarded under this Order.

(4) The provisions of Chapter XXIX of the said Code shall not apply in respect of the punishment awarded under Article 8."

Learned counsel for the parties are in agreement that appeal against an order passed under Article 8 of the Prohibition Order by a Court of Sessions lies to the Federal Shariat Court and that appeal from an order under any other Article of the Prohibition Order imposing a sentence of

imprisonment for a term exceeding two years also lies to the Federal Shariat Court. We may note here that Mr. Minto, learned counsel for respondent No. 2 [Criminal Appeal No. 79(S) of 1992] at one stage argued that the words "which imposes a sentence of imprisonment for a term exceeding two years" refer to the Order which means Prohibition Order and do not refer to the order whereby the sentence of more than two years has been awarded. He argued that the word "imposes" should be read as "prescribes". This argument was, however, not pursued realizing that no Article of the Prohibition Order prescribes the punishment in the manner mentioned in this Proviso.

The difference is on the question whether appeal from an order of acquittal lies to the High Court or to the Federal Shariat Court. The judgments cited in support of the contention that appeal lies to the High Court may now be examined.

The case of Muhammad Tariq (PLD 1982 FSC 169) was relied upon laying particular emphasis at the underlined observation:-

"On the plain language of section 25 (this is a typing mistake as it should be Article 27) produced above it was not possible to extend the jurisdiction of the Court in a case of an appeal against acquittal to consider the question whether in the alternative the accused could be convicted in Taazir. This was a matter on which an appeal could be competent under Section 417, Cr.P.C. only before the High Court. It is in this light that the Courts have come to the conclusion that if in a case of acquittal under section 8 the evidence as required by Section 9 was not forthcoming, it would not have been possible for the Court to interfere with an order of acquittal because of lack of jurisdiction."

(Underlining is ours)

It is pertinent to note that these observations have been made with reference to the position obtaining under the Proviso added vide Presidential Order No. 5 of 1980 which conferred exclusive jurisdiction (a) on the Sessions Court to try all cases filed under Article 8 of the Prohibition Order; and (b) on the Federal Shariat Court to hear the appeals against any order under that Article, and it was further recognized that this was a clear departure from the provisions of the Code of Criminal Procedure. The observations are therefore, to be understood with reference to the position obtaining under the Proviso as then stood. It is also to be noted that amendment made in this Proviso vide Presidential Order No. 6 of 1982 was noticed in this judgment in the context whether the amendment introduced was retrospective or prospective and it was held that this amendment is clearly prospective and, therefore, cannot apply to cases which had already been decided much before its enforcement.

Learned Judges of the Federal Shariat Court, observing that the jurisdiction now vests in the Court to hear appeal also against the order of Taazir sentences, held the appeal to be incompetent for want of jurisdiction as the amendment made was prospective and as such not applicable to cases which had already been decided before its enforcement.

In the case of Abdul Majid (NLR 1982 Criminal 212) decided by the Lahore High Court the question of competence of appeal before the High Court was not examined on merits as on the statement of the Public Prosecutor that the appeal was competent before the High Court, learned Judge observed that "this is the correct legal position".

Next is the case of Muhammad Yaqoob (1997 P.Cr.L.J. 528) decided by the learned single Judge of the Peshawar High Court. In this case, after examining the provisions of Article 27 of the Prohibition Order as well as section 20 of the Office of Zina (Enforcement of Hudood) Ordinance,

1979, it was observed as under:-

"Thus, but for the exception provided under the afore-mentioned proviso, appeals against orders passed under the Order shall be regulated by the Criminal Procedure Code and will, therefore, be made to forums prescribed under the Code. The said proviso has made only two exceptions where appeals are to be made to Courts other than the ones specified under the Criminal Procedure Code and to in both cases the appeal would lie to the Federal Shariat Court. The first exception is where the offence is tried under Article 8 of the Prohibition Order, and second where the sentence imposed by the Trial Court exceeds two years. The result is that appeals against the orders of the Trial Court under the order would be regulated by the provisions of the Criminal Procedure Code if on conviction sentence imposed does not exceed two years or the accused is acquitted, in cases other than the one tried under Article 8 of the Order. Appeals against orders of acquittal lie to the High Court under section 417 of the Code. As the accused were charged under Article 3/4 of the Order and not under its Article 8, the present appeal was competently filed in the High Court."

This judgment was followed by the High Court of Sindh in *The State through Advocate General, Sindh and Public Prosecutor v. Shahbaz Khan* (1998 P.Cr.L.J. 1229). Learned Judges in this case differed with the contrary view taken in *Hai Pir Jan v. Muhammad Yaqoob and 9 others* (1997 P.Cr.L.J. 123&) by the High Court of Balochistan, Quetta. The observations made by the learned Judges of the High Court of Sindh read as under:-

"It is a settled principle of incorporation that a proviso to a statutory provision contains an exception to the general rule. The general rule in the above context is laid down in the main Article 27(1) which stipulates that the provisions of the Criminal Procedure Code unless otherwise expressly provided shall apply in respect of cases under this Order. This obviously includes provisions relating to appeals contained in Part VII, Chapter XXXI. The second proviso commits two kinds of order to the appellate jurisdiction of the Federal Shariat Court namely, (i) all orders relating to Hadd Offence under Article 8 and (ii) orders imposing sentence of imprisonment for a term exceeding two years under other provisions. Appeals against orders not covered by this proviso could only be preferred before a Forum Stipulated under the Code in terms of the main Article 27(1)."

It was also observed in this very judgment that "through a subsequent amendment vide Presidential Order No. 6 of 1982 the appellate jurisdiction of the Federal Shariat Court was extended to cover appeals convictions entailing punishment of more than two years imprisonment.

This jurisdiction of the Shariat Court was enlarged progressively and even now it is confined to a certain category of cases mentioned in the second proviso. The jurisdiction to hear appeals against order judgments i.e. convictions entailing less than two years' imprisonment or acquittal must necessarily be covered by the provisions of the Code.

The case of *Muhammad Yaqoob* (supra) decided by the High Court of Balochistan, Quetta pertains to Offences Against Property (Enforcement of Hudood) Ordinance, 1979. Provisions of Section 24 of this Ordinance are materially the same as those of Article 27 of the Prohibition Order. After examining the provisions of section 24 of the Ordinance, following conclusion was recorded:-

"We feel inclined to hold that even for the offences other than those defined and made punishable under the Ordinance or punishable under any other law for the time being in force within the ambit of the Ordinance, whether it result into conviction of imprisonment for a term

exceeding two years or into an order of acquittal passed by a competent Court, appeal would lie to the Federal Shariat Court only due to the jurisdiction having been so conferred to the Federal Shariat Court.

Keeping in view the principles of the Interpretation of Statutes that it should advance the remedy, to save rather destroy the Statute and to meet with certain contingencies not provided for in the Statute; beneficial construction of an enactment is to be made and for the reasons given hereinabove, we are of the considered view that against an order of acquittal for the offence/s tried within the ambit of

Ordinance (VI of 1979) appeal shall lie only to the Federal Shariat Court; resn'tantly the appeal filed in this Court is not maintainable, therefore, is ordered to be returned to the appellant for its presentation to the competent Court if so desired by him."

We have given serious thought to the submissions of the learned counsel for the parties and have also minutely gone through the afore-noted judgments and the relevant provisions contained in four Hudood Laws i.e. Offence of Zina (Enforcement of Hudood) Ordinance, 1979 (Ordinance VII of 1979) Offence of Qazf (Enforcement of Hadd) Ordinance, 1979 (Ordinance VIII of 1979), the Prohibition Order (President's Order No. 4 of 1979) and in the Offences Against Property (Enforcement of Hudood) Ordinance, 1979 (Ordinance VI of 1979).

A close study of the history of these four Hudood Laws and the amendments introduced therein from time to time show that when the Prohibition Order as well as Ordinance VI of 1979 relating to Offences Against Property were promulgated in 1979, provisions of Section 24 of Ordinance VI of 1979 and Article 27 of the Prohibition Order contemplated trial of the offences by ordinary Criminal Courts And the appeals to be heard and decided by the forum provided by the Code of Criminal Prdcedure. Both these provisions provide that unless otherwise provided, the provisions of Code of Criminal Procedure, 1898 shall apply mumtatis mutandis in respect of cases under the Ordinance/Order in 1980 Federal Shariat Court was established and vide Presidential Order No. 5 of 1980 second proviso was added to Article 27 of the Prohibition Order (P.O.No. 4 of 1979) and vide Ordinance No. XIX of 1980 second proviso was added in section 24 of Ordinance No. VI of 1979 relating to Offences Against Property whereby offences punishable under Article 8 of the Prohibition Order and the offences punishable under section 9 or section 17 of Ordinance No. VI of 1979 (Offences Against Property) were made triable exclusively by a Sessions Court; and orders passed under the said Article/sections were made appealable before the Federal Shariat Court. Similar amendment was made in section 20 of Ordinance No. VII of 1979, relating to offences of Zina, and in section 17 of Ordinance No. VIII of 1979 relating to offence of Qazf through Ordinance No. XX of 1980 and Ordinance No. XXI of 1980 respectively. Through these amendments, offences punishable under these Ordinances were made triable by a Court of Session and an appeal from the order of Court of Session was made to lie to the Federal Shariat Court. It may be noted that in the case of offences under the Prohibition Order as well as under Ordinance No. VI of 1979 relating to Offences against Property same method was not adopted providing the mode of trial and the forum of appeal. The distinctive treatment thus made in respect of these two laws manifests the different intention of the law-maker. It is also pertinent to note that despite the fact that Article 3(2) of the Prohibition Order prescribes imprisonment for life or imprisonment which is not less than 2 years and that offence falling under second proviso to Article 4 of the Prohibition Order makes the offender punishable with imprisonment for life or imprisonment which is not less than two years, through latter amendment neither mode of trial nor forum of appeal was specified and the matter was left to be regulated by the provisions of Code of Criminal Procedure and it was left with the prosecution to submit a challan before the Magistrate or before the Court of Session. The second Proviso to Article 27 of Prohibition Order and second Proviso to Section 24 of Ordinance VI of 1979, were amended vide President Order

No. 6 of 1982 and Ordinance No. II of 1982 respectively whereby the addition made read as under:-

"or from an order under any order provision of this Order which imposes a sentence of imprisonment for a term exceeding two years."

The amendment so introduced in the second proviso to Article 27 of the Prohibition Order and section 24 of the Offences Against Property Ordinance made the Federal Shariat Court appellate forum against the orders imposing punishment of more than two years' imprisonment.

Legislative history of these enactments, as was rightly pointed out by the learned Judges of High Court of Sindh, Karachi, shows that the jurisdiction of the Federal Shariat Court was enlarged progressively and even now it is confined to a certain category of cases mentioned in the second proviso and that the jurisdiction to hear appeals against other judgments i.e. conviction entailing less than two years' imprisonment or acquittal must necessarily be covered by provisions of the Code of Criminal Procedure. They are, however, not right in holding that appeal against any order of acquittal would lie to High Court and not to Federal Shariat Court.

It will be seen that in addition to Article 8 making drinking liable to hadd punishable with eighty stripes, the Prohibition Order prescribes punishment for manufacture etc. of intoxicants under Article 3, for owning or possessing intoxicants under Article 4 and for drinking liable to taazir under Article 11. The sentence under Article 11 is imprisonment for a term which may extend to 3 years while under Article 3, it may extend to 5 years or in certain cases to imprisonment for life or imprisonment which is not less than 2 years. Likewise under Article 4, it may extend to 2 years and in certain cases punishment may be of imprisonment for life or imprisonment which is not less than 2 years. The Ordinance relating to Offences Against Property similarly provides that offences of haraabah and theft liable to Hadd under sections 9 and 17 are to be tried by Sessions Court while trial of the offence punishable as Taazir e.g.

offence of theft liable to taazir (Sections 13 & 14) punishable as theft under PPC, offence of haraabah liable to taazir punishable as dacoity, robbery, extortion under PPC (Section 20) and offence of resagiri or patharidari punishable with 14 years rigorous imprisonment while attempt to commit any of the offence punishable with 10 years rigorous imprisonment is left to be regulated by Cr.P.C. Second Schedule to the Code of Criminal Procedure provides that offence of theft punishable with imprisonment of 3 years under section 378 may be tried by a Judicial Magistrate, offence of Robbery and Dacoity is triable by Court of Sessions and offence of extortion is to be tried by Magistrate of the First Class. So, for the offences which are punishable with 3 years imprisonment and the punishment awarded is 2 years or less, the appeal lies to Court of Sessions vide Section 408, Cr.P.C. and if the punishment for any of the other offences mentioned in the Prohibition Order or Ordinance No. VI of 1979 awarded exceeds two years imprisonment, the appeal would lie to Federal Shariat Court vide Article 27 of the Prohibition Order or Section 24 of Ordinance VI of 1979. In such a case trial may have been held by a Judicial Magistrate with Section 30 powers or a Court of Sessions. A Judicial Magistrate First Class who has the power under section 32, Cr.P.C. to pass sentence of imprisonment for term not exceeding 3 years can only try the offence which is punishable for two years only and for such trials the appellate forum will be Court of Sessions while in all other cases irrespective of the fact that trial is held by Judicial Magistrate with or without section 30 powers or Court of Sessions, the appellate forum is Federal Shariat Court. Hence even by following the provisions of Code of Criminal Procedure the appellate forum for cases of imprisonment for a term exceeding two years is Federal Shariat Court. Thus what is to be seen is the Court which can hold the trial so as to competently impose the prescribed imprisonment and the forum of appeal is also to be determined with reference to the Court which held the trial and passed the order of

acquittal or conviction. The appeal would lie to the Court before which order of conviction is challenged. In this way conflict in judgments would not occur, which otherwise will arise if it is held that appeal against order of acquittal in trial held by Magistrate First Class or Magistrate with Section 30 powers or by Court of Sessions, for cases for offences punishable with term exceeding two years imprisonment would lie to High Court while the appeal against order of conviction awarding sentence of a term for more than 2 years in same trial or any trial would lie to Federal Shariat Court. Learned Judges of High Court of Balochistan in the case of Muhammad Yaqoob (supra) with a view to avoid such an incongruous situation held that appeal against order of acquittal is not competent before High Court. This view for the reasons given above reflects the correct position obtaining in law, Learned Judges of the High Court of Sindh though rightly traced (he legislative history and held the Code of Criminal Procedure applicable but did not arrive at the correct conclusion as the position obtaining under the Code of Criminal Procedure read with the provisions of Article 27 of the Order and Section 21 of the Ordinance relating to Offences Against ' Property was not traced to its logical conclusion.

Moreover irreconcilable orders from two jurisdictions i.e. High Court and Federal Shariat Court would be avoided, if the Federal Shariat Court is taken as an appellate forum for such order passed by the competent Trial Court* as pointed out above, both for the order of acquittal or conviction. The fact that appeal against order of conviction passed by the Trial Court competent to impose and has imposed sentence of imprisonment of two years or less lies to the Sessions Court poses no difficulty as the order passed in appeal by the Sessions Court is revisable by- the Federal Shariat Court under Article 203-DD) of the Constitution and the order of acquittal passed by the Trial Court competent to pass sentence of 3 years or more and has imposed sentence of imprisonment *br a period exceeding two years can be challenged before the Federal Shariat Court as admittedly it is the Court of appeal for such orders.

Reference at this stage may be made to Muhammad Riaz Ahmad v. Ajmal Hussain and others (PLD 1983 SC 233) wherein Shariat Appellate Bench held the appeal against acquittal filed before the Federal Shariat Court as incompetent. This case was a challan case under sections 11 and 16 of the Offence of Zina (Enforcement of Hudood) Ordinance, 1979. Learned Additional Sessions Judge had accepting the application under section 265-K, Cr.P.C. had acquitted the accused observing that there was no probability of the accused being convicted in the case.

Dissatisfied with the order, complainant had filed an appeal under section 20- of the Offence of Zina (Enforcement of Hudood) Ordinance, 1979 before the Federal Shariat Court, which was dismissed and thereafter a Petition for leave to appeal was taken to the Shariat Appellate Bench. Relevant observation recorded by the Shariat Appellate Bench read as under:-

"According to section 20 of the Ordinance, the provisions of the Criminal Procedure Code apply mutatis mutandis in respect of a cases under the said Ordinance. Under section 417, Cr.P.C., which deals with the appeals in case of acquittal, it is provided in sub-section (1) thereof that "the Provincial Government may, in any case, direct the Public Prosecutor to present an appeal to the High Court from an original or appellate order of acquittal passed by any Court other than a High Court." In this case, no such direction was issued by the Provincial Government. It is true that under sub-section (2) of section

417, Cr.P.C. the complainant can file an appeal, if the High Court (which in the context would mean the Federal Shariat Court) grants special leave to appeal, but this is possible only in those cases where the order of acquittal is passed in any case instituted upon a complainant, which is not the case here. The view expressed in Muhammad Hussain v. Muhammad Ramzan (PLD 1982 FSC 11), that a complainant feeling aggrieved by an order of a Court of Sessions can file an appeal before the Federal Shariat Court under section 20 of the Ordinance is not correct as-it.

has been taken by overlooking the provisions of section 20 of the Ordinance which makes the Criminal Procedure Code including obviously section 417 thereof apply mutatis mutandis in respect of cases under the Ordinance. Hence the appeal of the petitioner hereinbefore the Federal Shariat Court was incompetent."

It will be seen that the view expressed by the Federal Shariat Court in the case of Muhammad Hussain v. Muhammad Ramzan (PLD 1982 FSC 11) that an aggrieved complainant can file an appeal before the Federal Shariat Court was held not correct as it overlooked the provisions of section 20 of the Offence of Zina (Enforcement of Hudood) Ordinance, 1979 which makes the Code of Criminal Procedure, 1898, including section 417, applicable mutatis mutandis, in respect of the cases under the Offences of Zina (Enforcement of Hudood) Ordinance, 1979. It was, however, conceded that the complainant can file an appeal if the High Court, which in the context would mean the Federal Shariat Court, grants leave to appeal but this could be done only in those cases where the order of acquittal was passed in a case initiated upon a complaint. It, therefore, follows that had the case been a case initiated upon a complaint, the acquittal appeal with the leave of the Federal Shariat Court would have been competent. This was the position of law then obtaining before addition of subsection (2A) of section 417, Cr.P.C. vide Act XX of 1994. This sub-section (2A) provides that "a person aggrieved by the order of acquittal passed by any Court other than a High Court, may, within thirty days, file an appeal against such order." It is also to be noted that the word "Court" used in Section 417, Cr.P.C. under which the acquittal appeal lies had been read in this judgment as "Federal Shariat Court."

It is also to be borne in mind that the provisions of sub-article (1) of Article 27 of the Prohibition Order which provides that the provisions of the Code of Criminal Procedure, 1898 shall apply mutatis mutandis, poses no difficulty in preferring the fore-noted interpretation. As per dictionary meaning contained in Chambers 20th Century Dictionary "mutatis mutandis" means

"with necessary changes". Black's Law Dictionary defines the expression "mutatus mutandis" as under:- "With necessary changes in points of detail, meaning that matters or things are generally the same, but to be altered when necessary, as to names, offices, and the like."

The legal term "mutatis mutandis" connotes, as per Venkataramaiah's Law Lexicon as follows:-

"When a law directs that a provision made for a certain type of case shall apply mutatis mutandis in another type of case, it means that it shall apply with such changes as may be necessary, but not that even if no change be necessary, some change shall nevertheless be made.

This expression mutatis mutandis is an adverbial phrase qualifying the very "shall apply" and meaning "those changes being made which must be made".

For the purpose of Prohibition Order and Ordinance VI of 1979, the words "High Court" referred to in section 417, Cr.P.C. in the context would mean the "Federal Shariat Court" and thus by adopting such an interpretation the incongruity or the anomalous situation referred to by, the learned Judges of the High Court of Sindh in the case of Shahbaz Khan (1998 P.Cr.L.J. 1229) would disappear. There will be no conflict of judgments of the two jurisdictions as Federal Shariat Court will be exercising the jurisdiction vesting in it under the Hudood Laws as well as under the Constitution of Pakistan. The net result of the above discussion is that the appeals filed before the Federal Shariat Court against the order of acquittal were competent.

Coming to the merits of the order of acquittal, we are of the considered view that these orders could not be set aside by the Federal Shariat Court in view of the material on record and the criteria laid down by the superior Courts in judgments for setting aside the acquittal. The cases

cited in this respect by the learned counsel for the appellants, which have been noted above, may be referred to. The test laid down by the Supreme Court in Ghulam Sikandar and another v. Mamaraz Khan and others (PLD 1985 SC 11) is that "The Court would not interfere with acquittal merely because on reappraisal of the evidence it comes to the conclusion different from that of the Court acquitting the accused provided both the conclusions are reasonably possible. If, however, the conclusion reached by that Court was such that no i-1 -

the Court would interfere in exceptional cases on overwhelming proof resulting in conclusive and irresistible conclusion; and that too with a view only to avoid grave miscarriage of justice and for no other purpose. The important test visualised in these cases is that the finding sought to be interfered with, after scrutiny under the foregoing searching light, should be found wholly artificial, shocking and ridiculous." This view has been reiterated and affirmed by the Supreme Court in various decisions delivered thereafter. The superior Court thus interferes in order of acquittal on overwhelming proof resulting in conclusive and irresistible different conclusion; that conclusion recorded by the Court below was such that no reasonable person would conceivably reach the same; and that too with a view only to avoid grave miscarriage of justice.

Learned counsel for the appellants were also right in pressing into service the principle settled by the Supreme Court in its judgments that by enacting sections 249-A and 265-K, Cr.P.C., the legislature in its wisdom did not leave - the question of recording of the evidence as a condition before taking action under either of the provisions. The use of the expression "at any stage of the case" is indicative enough of the intention that any such stage could be the very initial stage, after taking cognizance, or it could be a middle stage after recording some proceedings and/or even, it could be later stage as well. See; State through Secretary, Ministry of Interior v. Ashiq Ali Bhutto (1993 SCMR 523).

Though in the case of Mian Aftab Saigal [Cr. Appeal 79(S) of 1992] only the evidence of doctor had been recorded and police witnesses and the witnesses from the public were yet to be examined but seeing the prosecution cause itself, the recording of the statements of the police witnesses and even one witness from the public would not have made any difference. Moreover, at the time when the Federal Shariat Court intervened, the statement of Maqbool Ilahi, the only witness from the public was also available. In the said statement, Maqbool Ilahi had denied any knowledge of the occurrence, the subject-matter of the present case. It was because of this situation prevailing in the case that Mr. Abid Hassan Minto did not seriously challenge the acquittal on merits.

Dr. Saqib Naseem PW-1, in his statement in the Medico-Legal Report had noted the following features:-

The smell of alcohol was coming from his mouth.

(2) Face was congested and tongue was dry but eyes reacting to light.

(3) He was oriented in space and time.

(4) Gait and speech was normal.

(5) Behaviour was normal.

(6) Attitude was also normal.

(7) It looked as if he had taken alcohol."

Report of the Chemical Examiner was not produced. Moreover, Dr. Saqib Naseem PW-I in his cross-examination admitted that the brothers of the accused who were stated to be his opponents as well as police officials were pressurizing him to make the report in haste and in that very hassle they i.e. the brothers of the appellant/opposit party maltreated the accused, broke his spectacles and pulled him from his clothes and that he could not intervene to stop them from doing so as there was no proper police arrangement. He explained that it was for the aforesaid reasons that he could not endorse in the police docket the serial number and the date. He also admitted the suggestion as correct that if the suggested medicines had been taken the Chemical Examination Report of blood and urine would contain indication of alcohol and that even on smelling, the mouth may give the smell of alcohol. He also accepted the suggestion as correct that at the time of examination the accused from his behaviour, gait and speech looked a normal person who has not taken alcohol. He also accepted the suggestion as correct that the accused had also told him of his heart ailment and that the medicines taken for heart ailment contained alcohol. He further added that from item No. 1 of the report he entertained a doubt that the accused had taken alcohol while items Nos. 2 to 6 of the report negate the fact that the accused had taken alcohol as the said condition could be of a normal man and it was for this reason that he had taken blood sample and sent the same for Chemical Examination.

In this case the Police Surgeon is the main witness and the condition noted in his report required to be supported with the result of the Chemical Examination. The said report assumes importance as according to the prosecution case nobody had seen the accused taking or consuming alcohol. The police officials as well as Maqbool Ilahi, a witness of the public, at best were, according to the prosecution allegation, witnesses of the alleged rowdy scene being created by the accused. The rowdy behaviour simpliciter at a public place by itself is not an offence and does not lead to the inference that the person behaving in said rowdy manner was doing so under the influence of alcohol. The plea that the learned Magistrate should have himself summoned the report is of no avail at this stage as no request was made by the prosecution during the trial or even during the pendency of the appeal before the Federal Shariat Court. On the other hand adverse inference can legitimately be drawn on account of non-production of the report of the Chemical Examiner.

In these circumstances, production of Maqbool Uahi, the witness from public, is of no avail as he, during the pendency of the case, had appeared in another case and had admitted that he was not a party to the raiding team of the police in the said case and that he was not present at the spot on that day and in fact he was not present on the spot then. He had stated that if the police had written any statement in his name, they had written it on their own and that he had not given any statement to the police in the case of taking of liquor registered against Mian Aftab Saigal. This statement of Maqbool Ilahi was unfortunately not taken notice of by the learned Judges of the Federal Shariat Court while passing the impugned judgment. Had the facts noted above been noticed, learned Judges of the Federal Shariat Court would have obviously come to the conclusion that recording of the statement of the remaining witnesses in the circumstances would not have improved the prosecution case in any manner and, in the circumstances, no useful purpose would be served by directing retrial after setting aside acquittal.

Same is the situation in the case of Muhammad Sharif. In this case, before ordering acquittal, learned Magistrate had examined five witnesses.

Only one witness, Saeed Khan DSP remained to be examined. The alleged recovery of narcotics was witnessed by three witnesses namely, Saeed Khan DSP, Ahmad Din PW-3 and Bashir Ahmad PW-4. Bashir Ahmad PW-4 resiled from his statement and was cross-examined by the prosecution but nothing favourable to the prosecution could be obtained from him. Ahmad Din

PW-3 had sworn affidavit on 21.6.1989 to the effect that neither he participated in the raid nor any recovery was effected in his presence. During trial, in his statement, though he denied the contents of the affidavit but did not deny his signatures as well as the correctness of the National Identity Card number entered in the said affidavit. He added that on the said date some persons came to his house and got his signatures on the stamp paper by exerting pressure. He, however, admitted that he had not lodged any complaint with any one with regard to the obtaining of the said affidavit under force from him.

This witness further admitted that 2 criminal cases; one for gambling and the other under section 307, PPC stand registered against him and that he is real brother of Jeeroo who is absconder in many criminal cases. He further admitted that the Inspector Police is known to him and on account of that acquaintance he was included in the raiding party. Learned Magistrate further noted the contradictions appearing in his statement and then in these circumstances came to the conclusion that the evidence of the DSP who was the Investigating Officer would not make any difference.

In addition to all these weaknesses of the prosecution case, Muhammad Akram ASI, who was not cited as a witness, got the docket of 15 parcels prepared from the Excise Office on 19.3.1989 and delivered these parcels on

20.3.1989 in the office of the Chemical Examiner as is apparent from the entries appearing in the report of the Chemical Examiner.

As against above, Allah Din Constable PW deposed that Saeed Khan DSP delivered him the parcels containing samples on 12.3.1989 which he delivered on 20.3.1989 to Muhammad Akram, ASI, while on 19.3.1989 these parcels containing samples were with Allah Din Constable PW. So, if on 19.3.1989 these parcels containing samples were with Allah Din Constable PW, then how Muhammad Akram, ASI one day earlier, on 19.3.1989, got the docket prepared from the Excise Office. Moreover, it is not explained as to how from

12.3.1989 to 20.3.1989 these parcels remained in his possession and why these were not deposited in the Malkhana in time. To crown all this, there is a statement of Muhammad Munir PW-5 which knocks out the prosecution case completely. He deposed that he had rented out the house in question situated in Nizam Pura to one Haji Dilawar who is residing there with his children and that this house has two floors, and upper floor is on rent while the ground floor is vacant. He added that in the month of March, 1989, Haji Dilawar lived there. He further stated that Haji Dilawar is not father-in-law of Shaman accused/absconder, that he had not seen Shaman absconder till date there. He added that he had not rented out this house either to Muhammad Sharif accused or to his sons, nor any recovery was effected from the said house and the fact of the matter is that at the time of alleged recovery, the lower portion of the house was vacant and the upper portion was under rent with Haji Dilawar.

It is pertinent to note that according to prosecution the house, from where recovery was effected, is a single storey house. The aforesaid witness (Muhammad Munir PW-5) was produced by the prosecution to prove its occupation be the accused but the said witness completely belies the said version of the prosecution. Despite this, the prosecution did not declare the said witness as hostile and also did not cross-examine him.

These reasons, which appear to be weighty were not even noticed by the learned Judges of the Federal Shariat Court while setting aside the orders of acquittal which are based on the ground that the Court cannot close the mouth of the prosecution and assess the evidence of witnesses without recording their evidence. This criticism, in the circumstances of the case, is not valid.

What J has to be seen is that whether even if the statement of the remaining witness, as is alleged by the prosecution, is taken into consideration, can be urged with success that the said evidence, in the context of the other evidence already on record, would have improved the case of the prosecution. If the answer is in the negative then recording of the statement of such witnesses would result into wastage of public time for no benefit to the prosecution. Both were, as such, the cases where the order of acquittal merited not to be interfered with.

For the reasons given above, both the appeals are accepted, the impugned judgments of the Federal Shariat Court are set aside and orders of acquittal of the appellants are restored.

WAJIHUDDIN AHMED, J.-Having had the privilege of going through the proposed judgment of my learned brother Khalil-ur-Rhman. J., I agree that Criminal Appeal No. 78(S) of 1992 be allowed but respectfully disagree that Criminal Appeal No. 79(S) of 1992 be also allowed or the order of remand returned by the Federal Shariat Court (FSC) be set aside. I would accordingly proceed to record my reasons for so doing.

My learned brother, also the Chairman of this Shariat Appellate Bench, has correctly highlighted the legislative history behind the relevant amendments whereby appellate jurisdiction was conferred on the FSC in prohibition matters. The Shariat legislations on the subject are the Prohibition (Enforcement of Hadd) Order, IV of 1979, Offences Against Property (Enforcement of Hudood) Ordinance, VI of 1979, the Offence of Zina (Enforcement of Hudood) Ordinance, VII of 1979 and the Offence of Qazf (Enforcement of Hadd) Ordinance, VIII of 1979.

Originally the appellate jurisdictions in the foregoing Hudood matters vested in the ordinary Courts of criminal jurisdiction but the FSC having (initially) been established through President's Order No. 5 Of 1990, occasion arose to introduce such Court as an appellate forum in the Hudood matters under discussion. Necessary amendments, therefore, were made in sections 27, 24, 20 and 17 respectively in the four legislations above-referred. Since, for our purposes, it is the Prohibition Order, which is material, I would once again reproduce the amended version of Article 27 therein where the second proviso to clause 27(1) was inserted through the Prohibition (Enforcement of Hadd) (Amendment) Order, 1980 (P.O. No. 5 of 1980) wherein the words "or from an order under any other provisions of this Order which imposes a sentence of imprisonment for a term exceeding two years" were added by a similar amending Order vis. P.O. 6 of 1982. The amended version of Article 27 *ibid* is as below:-

"27. Application of the Code of Criminal Procedure, 1898.-(1) Unless otherwise expressly provided in this Order, the provisions of the Code of Criminal Procedure, 1898, hereinafter referred to as the said Code, shall apply, *mutatis mutandis*, in respect of cases under this Order:

Provided that, if it appears in evidence that the offender has committed a different offence under any other law, he may, if the Court is competent to try that offence and to award punishment therefor, be convicted and punished for that offence(:)

(Provided further that an offence punishable under Article 8 shall be triable by a Court of Session and not by a Magistrate authorised under section 30 "of the said Code and an appeal from an order under that Article (or from an order under any other provision of this Order which imposes a sentence of imprisonment for a term exceeding two years) shall lie to the Federal Shariat Court:

Provided further that a trial by a Court of Session under this Order shall ordinarily be held at the headquarters of the Tehsil in which the offence is alleged to have been committed.

(2) The provisions of the said Code relating to the confirmation of the sentence of death shall

apply, mutatis mutandis, to the confirmation of a sentence under this Order.

(3) The provisions of sub-section (3) of section 391 or section 393 of the said Code shall not apply in respect of the punishment of whipping awarded under this Order.

(4) The provisions of Chapter XXIX of the said Code shall not apply in respect of the punishment awarded under Article 8."

Similarly, amendments in the way of addition of like second provisos in sections 24, 20 and 17 of the other statutes are these:-

Ordinance VI of 1979 (Provided further that an offence punishable under section 9 or section 17 shall be triable by a Court of Sessions and not by a

appeal from an order under either of the said sections (or from an order or under any other provisions of this Ordinance which imposes a sentence of imprisonment for a term exceeding two years) shall lie to the Federal Shariat Court: Ordinance VII of 1979 (Provided further that an offence punishable under this Ordinance shall be triable by a Court of Session and not by a Magistrate authorised under section 30 of the said Code and an appeal from an order of the Court of Session shall lie to the Federal Shariat Court:

Ordinance VIII of 1979

"17(1)

(Provided further that an offence punishable under section 7 or sub-section (4) of section 14, shall be triable by, and proceedings under sub-sections (1) and (2) of the latter section shall be held before a Court of Session and not by or before a Magistrate authorised under section 30 of the said Code and an appeal from an order of the Court of Session shall lie to the Federal Shariat Court:

It is correct that normally a proviso operates as an exception to the rule in a main provision but such is not an inflexible legislative practice. There are occasions, as apparent in this instance, where a proviso is introduced not merely as an exception to the main provision but as one which controls such a provision. The present case is an example in point. True it is that the language used is somewhat unhappy but the object achieved is the same, as pointed out in the main judgment and as held in *Muhammad Riaz Ahmad v. Ajmal Hussain* (PLD 1983 SC 233) viz.

the expression "High Court" as occurring in the Criminal Procedure Code, including section 417 thereof (acquittal appeals), would mutatis mutandis (after the amendment) mean and signify the Federal Shariat Court. However, while the main judgment has distinguished *Re: Muhammad Riaz Ahmad* (Supra) in the context of over-ruling *Muhammad Hussain v. Muhammad Ramzan* (PLD 1982 FSC 11) on the ground that after the introduction of section 417 (2A), Cr.P.C. the question is not relevant, I am, because of the existence of other similar statutory dispensations, contained, respectfully, to point out that Muhammad Hussain's case was decided independently of section 417, Cr.P.C., and upon the general conferment of jurisdiction on the FSC to hear appeals "from an order of the Court of Session" per the amended second proviso to section 20 of the Zina Ordinance. Muhammad Hussain's case, I venture to think was, therefore, correctly decided.

A fuller discussion on the point of substitution of a High Court by the Federal Shariat Court is available in the main judgment and the grounds already covered need not be retraced. However,

on my part, I am inclined to point out that since the original text of clause (2) in Article 27 (reproduced) has been continuing there seems to have occurred an automatic substitution of the words "High Court" in Chapter XXVII of the Criminal Procedure Code by the equivalent of Federal Shariat Court. The position is similar in all the four Hudood laws and sub-section (2) of sections 24, 20 and 17 are to like effect. Thus at the time of the original promulgation such Article (27) indicated that the provisions relating to confirmation of sentences of death would be invocable mutatis mutandis before the High Court where such confirmation recurrence were to lie.

Following upon the insertion of the second provision to clause (1) in such Article (sub-section (1) in the other three laws) that would no longer be the case because just as an appeal would lie to the Federal Shariat Court against a sentence of death likewise a reference would also be attracted in the same jurisdiction. Such would arise albeit the fact that there has been no amendment in clause (2) of Article 27 in the Prohibition Order, which as stated has remained unaltered since its promulgation. In the result, therefore, I respectfully agree that the principal appellate forum by virtue of the said amendment in Prohibition matters has been substituted by the Federal Shariat Court in place of the erstwhile appellate authority viz. the High Court.

Coming now to the merits of Criminal Appeal No. 79(S) of 1992 I would proceed to state my reasons as to why such appeal should be dismissed.

The most important aspect of the matter is that the appellant/accused, is shown in the medico-legal report to have related before the doctor that it was the opposite party which had forcibly given him alcohol. The exact words in the report are:-

"Patient gives history that opposite party had forcefully given me alcohol."

However in contradiction of the above, during the examination of Dr. Saqib Naim, P.W. 1 (the only witness examined), a case of taking heart ailment medicines was put up, which finds mention in the order of acquittal, rendered by the Court of first instance, in these words:-

"The upshot of the discussion is that the, accused person Aftab Saigal is heart patient and was regularly taking the phospholeothin and brandicon medicines. Both medicines carry 10% alcohol, as one of the ingredient. The Dr. confirmed that the person who generally takes such medicines, his mouth or smelling gives the puffs of alcohol and while taking his blood, the alcohol is detected from his blood. The Doctor's evidence is sufficient to acquit the accused u/s. 249-A, Cr.P.C. and no objections have been raised by the prosecution. It would be futile of the time to summon the remaining officials, witnesses as there is no other public witness from the locality. The accused is acquitted u/s. 249-A, Cr.P.C. of the offences u/s. 1 I/IV/79 (PEHO)."

In view of the pleas noted above, and without any further evidence whatsoever, the learned Magistrate could hardly have come to the conclusion reproduced herein.

It would appear that P.W. 1, the doctor, who examined the accused, was evidently supporting the accused because he had not merely recorded findings, adverse to the accused at serial Nos. 1 and 8, as maintained by him in Court, namely:- (1) Smell of alcohol was coming from breath;

(8) Appearance revealed that the patient had taken an intoxicant," but also at serial Nos. 2 and 4 viz:-

Eyes were red;

(4) Face was red and tongue was dry."

It is also significant that the Chemical Examiner's report could be easily sent for the Magistrate but he thought fit to proceed to acquit the accused under section 249A, Cr.P.C.

As regards the statement of (proposed) prosecution witness Maqbool Ellahi in another set of proceedings, a copy of the same was never produced before the Federal Shariat Court and, therefore, such a statement cannot be made the basis of recall of the Federal Shariat Court order of remand.

Having carefully considered the case, I am of the view that, on the material available before the Trial Court, the case was not a fit one for acquittal under section 249-A of the Criminal Procedure Code. It may also be r. noted that in appellate or revisional proceedings the same sanctity cannot be accorded to acquittals at intermediary stages such as under section 249-A, or

265-K of the Code as available for those recorded and based on full-fledged evidence.

My conclusion, therefore, is that the Federal Shariat Court was eminently right in remanding the case back for trial. At that stage of the proceedings all that was necessary to see, in terms of section 249-A, Cr.P.C., was whether the charge was groundless or whether, upon remand, there was no probability of conviction and if neither of these conditions was satisfied, clearly the acquittal was premature, in turn, justifying the order of remand.

In these circumstances I do not consider Criminal Appeal No. 79(S)/92 to be a fit one for interference in an otherwise plausible order of the Federal Shariat Court. Such appeal, according to my judgment, deserves to be dismissed.

MUNIR A. SHEIKH, J.-After I had signed the majority judgment, I have had the opportunity of reading the proposed judgment of my learned brother, Wajihuddin Ahmad, J. in CrI. A. 79(S)/92, therefore, I would like to add my views in respect of the matters discussed by him. On principle, I fully agree as to interpretation of Section 265-K, Cr.P.C. by my learned brother, for acquittal under the said section could be made only if there was no possibility of conviction of the accused, the said principle, in my view, is fully attracted in this case, for the only witness apart from the complainant in this case as cited by the prosecution was Maqbool Ellahi. The said witness while appearing in some other proceedings, had made a statement that he did not see the occurrence as he was not present at the spot. My learned brother did not consider the said document by observing that copy of the same was not placed before the Federal Shariat Court on the basis of which the acquittal was made 4 by it. I have examined the record of the Federal Shariat Court and find that copy of the statement of the said witness is available on the record, therefore, in my view, the remand of the case would be a futile exercise. As regards plea I raised by the accused in his defence, in my view, the statement of the accused is either to be taken and believed as a whole or rejected as a whole. It is also on the record that there is enmity between the two parties as they are litigating in respect of properties. In case, there is no independent evidence, the statement of the accused cannot be made the basis for convicting him as the same is qualified and not a confession, as the prosecution has no independent evidence to bring home guilt to the accused.

ORDER OF THE COURT

By unanimous view Criminal Appeal No. 78 (S) of 1992 and by majority view Criminal Appeal No. 79(S) of 1992 both are accepted.

The impugned judgments of the Federal Shariat Court are set aside and orders of acquittal of the

appellants are restored. Appeal Allowed/Acquittals Restored

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